



October 14, 2011

Ms. Sreyoshi Chakraborty, Transportation Planner
Cheyenne Metropolitan Planning Organization
2101 O'Neil Avenue, Room 205
Cheyenne, WY 82001

RE: 8th Avenue Corridor Plan
Scope, Budget, Schedule and City Contract Language

Dear Ms. Chakraborty:

Per our phone discussions with you and Tom Mason, we have adjusted the proposed scope of work and budget for the 8th Avenue Corridor Plan to better fit within the available funding. As shown in the attached documents, the adjusted scope reduces the project budget to \$66,548, while still achieving the study outcomes detailed in the RFP. The attached spreadsheet breaks out this budget by the individual tasks outlined in the scope of work. The highlighted rows denote modified tasks.

The following highlights the revisions made to the original scope outlined in our response to the RFP:

PlanCheyenne: Snapshot Tasks:

1. Per our discussions, we have included field site observations during Cheyenne Frontier Days. To accommodate this task, we have adjusted the schedule so that the preliminary plan would be issued in June, prior to Frontier Days, and the draft plan would be issued in August, providing us an opportunity to make revisions based on the CFD observations.

PlanCheyenne: Structure Tasks:

1. We have reduced the number of Carey Avenue intersection alignment options to be analyzed from three to two.
2. We have eliminated the 3rd public meeting, where we would present the draft plan for public review and comment. We will still present the draft plan to stakeholders and key participants so they have an opportunity to review it and provide comments, but we would suggest using the Planning Commission meeting as a formal presentation of the draft plan.
3. We will provide technical information for the MPO Technical, Policy and Citizen's Advisory Committee meetings, the Cheyenne Frontier Days Committee meeting, and the City Council meeting to discuss the proposed corridor plan, but we will not attend any of those meetings.

PlanCheyenne: Build Tasks:

1. We will develop 10 percent design plans for the corridor preferred alternative rather than 35 percent. This level of design will still provide sufficient information on which to develop preliminary opinions of probable cost for that project element.

Project Schedule

1. To accommodate the Cheyenne Frontier Days observations, we have adjusted the schedule so that the preliminary plan would be issued in June, prior to Frontier Days, and the draft plan would be issued in August, providing us an opportunity to make revisions based on the CFD observations. We would further suggest that the project begin in January 2012, after the

holidays, and that the first round of stakeholder and public meetings occur in February and March.

City Contract Language

We appreciate the City of Cheyenne's consideration of using our services again and we have enjoyed a long standing relationship in providing services to the City and its staff. We have one section we would like to address in the City's contract for this project. This is under Section 8. Indemnification and Hold Harmless.

The issue is the wording for defend. Including defense as part of our indemnity obligations for professional services exposes our firm to an uninsured liability for which we have no coverage. If we are found liable for professional services, our insurance provider will not defend our clients. However, if we are ultimately found to be liable for a claim or loss with respect to our professional services, Felsburg Holt & Ullevig can recover, on behalf of our Client, reasonable attorney fees and costs from our insurance provider, but only to the extent we are liable.

In terms of general commercial, auto, and worker's compensation, we will include the City as an additional insured and this provides for defense coverage on those types of claims. Based on this we would ask that Section 8, Indemnification / Hold Harmless, be broken into two paragraphs.

8. INDEMNIFICATION / HOLD HARMLESS

In entering into Agreement, the Consultant agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, and authorized volunteers against any and all claims and costs, **excluding professional liability**, including attorney's fees, to the extent arising during or resulting from the Consultant's negligent or wrongful performance of the agreement, and shall carry insurance as set forth in this agreement. The Consultant acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City.

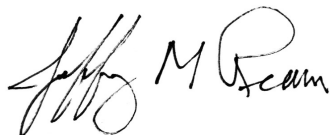
In entering into Agreement, the Consultant agrees to hold harmless and indemnify the City of Cheyenne, its officials, employees, and authorized volunteers against professional liability claims and costs, to the extent arising during or resulting from the Consultant's negligent act, and shall carry insurance as set forth in this agreement. The Consultant acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City.

You can contact me or Jeff Ream if you have any questions regarding the attached scope, budget and schedule and our suggested revisions to the contract language. We look forward to the opportunity to once again work with the Cheyenne MPO team in service to your constituencies.

Sincerely,
FELSBURG HOLT & ULLEVIG



Lyle E. DeVries, PE, PTOE
Principal-in-Charge



Jeffrey M. Ream, PE, PTOE
Project Manager

Project Scope of Work

PlanCheyenne Snapshot

The Snapshot task will provide a picture of existing and future traffic and travel conditions along 8th Avenue and set the stage for development of the corridor plan.

Review Existing Documents

We have downloaded or obtained from you copies of the relevant documents listed in the RFP and familiarized ourselves with the existing conditions and plans in the area. Furthermore, BHA Design, who produced the Lions Park Master Plan, will assist us in this effort, and the institutional knowledge they gained during the development of that plan will further strengthen our understanding of the area.

- 8th Avenue NTMP

- Lions Park Master Plan

- Local Traffic Volumes

- Historical Crash Data

- City of Cheyenne Road, Street and Site Design Planning Standards 2007

- Cheyenne Area On-Street Bicycle Plan and Greenway Plan Update

We will also compile from the MPO all available GIS layers pertaining to the study area, including but not limited to zoning, land use, topography, water and sewer, crash data, storm sewer system, transit routes and flood areas.

Finally, will conduct a site visit to the corridor during Cheyenne Frontier Days to observe traffic, parking and pedestrian operations during that event. As part of that effort we will coordinate with MPO staff to collect 24-hour traffic volume data on 8th Avenue, east and west of Carey Avenue, and on Carey Avenue north and south of 8th Avenue.

Tasks

1. Review existing documentation
2. Obtain GIS data from the MPO
3. Conduct field visit during Cheyenne Frontier Days

Analysis of Existing and Future Data

The existing documentation provided in the RFP appears to provide an excellent breadth of information on which we can base our analysis. The NTMP in particular provides the existing traffic, pedestrian, bicycle and crash data, while the Lion's Park Master Plan and the On Street Bicycle Plan and Greenway Plan Update provide input on the vision for the corridor. From the available data, the traffic volumes would suggest that the everyday travel demand on the roadway could be accommodated by a two-lane facility, but one area where there is somewhat of a data void is traffic volumes during Frontier Days, so we will look to Frontier Days staff and City Public Works staff to provide input on traffic volumes during that event. Such conditions may warrant the current four lane cross section east of Carey Avenue, but if that is the case, it would appear possible to develop a plan wherein the roadway is striped for one travel lane, bike lanes and parking in each direction for everyday conditions, and a event traffic management

8th Avenue Corridor Plan Scope of Work

plan is enacted during Frontier Days and during major events in Lions Park that uses the bike lane and parking lane as a second travel lane.

We will develop a Synchro traffic analysis model and a SimTraffic traffic simulation model for the corridor to provide a basis for the technical analysis of existing conditions and future alignment options.

Tasks

4. Develop Synchro and SimTraffic models of the corridor
5. Obtain and review existing traffic and crash data and future traffic projections from the MPO, and event traffic data from the City and/or Cheyenne Frontier Days.
6. Analyze existing and future traffic volumes in Synchro/SimTraffic
7. Analyze crash data to determine if specific intersection geometry is a consistent contributing factor to crashes
8. Identify and document pedestrian and bicycle system existing deficiencies.
9. Identify and document current transit routes and stops along the corridor and future transit plans for the corridor.
10. Identify and document right-of-way, current land uses, and utility alignments.

PlanCheyenne Structure

Alternatives Development and Screening

We envision that MPO and Technical Advisory Committee input will drive the development of roadway and intersection design options for 8th Avenue, and that up to two options would be considered for the roadway and up to two options would be considered for the Carey Avenue Intersection.

For the roadway design, we will analyze two potential design options. As noted above, preliminary review of traffic conditions would suggest that reducing the number of travel lanes east of Carey would be one feasible option for 8th Avenue, and doing such would allow for provisions of bike lanes and on-street parking (that could be used as a second travel lane during Frontier Days and major events in Lions Park) and possibly wider sidewalks. The median could initially be striped as a two way left turn lane, as it is west of Carey and later converted to a raised median with left turn channelization the entire length of the roadway. Together with marked pedestrian crossing at key locations along the road, such a design would accomplish the Complete Streets goal for the project. We will also explore one other alignment option based on TAC and MPO input.

For the intersection design, we will also analyze two potential alignment options. The constraints created by the park entry pillars, the skewed angle of Carey and the proximity of the Snyder and Reed Avenue intersections will present challenges, but the current roadway width created by the existing alignment intersection may provide sufficient room for a roundabout to replace the current traffic control.

A second option would be to narrow the approaches on Carey to a single lane to help address sight line issues for northbound and southbound vehicles, and provide channelization and crosswalks across 8th Avenue on either side of the intersection. Such an option would also create additional space on the southbound approach to extend the sidewalk around the pillar there, where it could continue it up Carey to the Frontier Park parking area by replacing one of the two travel lanes there.

8th Avenue Corridor Plan Scope of Work

Ultimately, the scope of work will an analysis of two alignment options for the intersection, which may consist of the above two, or an alternate option that arises based on TAC, MPO and/or public input.

Each of the design options would then be analyzed using Synchro and SimTraffic for its ability to meet travel demands for the corridor, for both everyday conditions and event conditions. They would also be evaluated based on their ability to meet other key goals identified by the TAC, such as pedestrian and bicycle accommodation, connectivity, access, sustainability, etc. The evaluation results would then be used to identify and evaluate a preferred alternative to move forward as a preliminary corridor plan.

Tasks

1. Develop two roadway laneage options for 8th Avenue and analyze them using Synchro and SimTraffic under everyday and event conditions
2. Develop conceptual roadway cross sections with bike lanes, parking/transit pullouts, aesthetic features and sidewalks/pathways for the above options
3. Develop three intersection design options for Carey/8th Avenue that address operations and safety issues, and analyze them using Synchro and SimTraffic under everyday and event conditions.
4. Develop preliminary design plans for each intersection option to determine impacts to the surrounding environment
5. Evaluate the roadway and intersection options based on a predetermined list of performance measures
6. Recommend an alternative to be carrier forward into the preliminary and draft corridor design plans.

Coordination with Staff for Technical Review and Analysis

FHU will coordinate and conduct three meetings with a Project Technical Advisory Committee to solicit input on the corridor vision and develop the corridor plan. We envision that the first meeting would occur prior to the first public involvement activity, so that TAC input on the corridor vision can be incorporated into the material presented to the public. The second meeting would occur after a preliminary plan has been developed, but prior to presentation of that plan to the public, to provide the TAC an opportunity to comment on and revise the initial concepts for the corridor. The final meeting would occur after the draft plan has been developed, and provide a final opportunity for TAC comments and revisions on the plan.

Tasks

7. TAC Input meeting
8. TAC review of preliminary plan meeting
9. TAC review and comments on draft plan

Public and Stakeholder Involvement

FHU will coordinate two public involvement sessions to obtain input on the corridor and intersections. We envision that these meetings would include an afternoon or early evening session with important stakeholders such as property owners, impacted agencies and developers, which would be followed by a open house-style meeting and presentation session for the general public. The first of these meetings would present the project and solicit input on issues, concerns, opportunities, constraints and design ideas and the second meeting would

8th Avenue Corridor Plan Scope of Work

include a summary of the analysis and present a preliminary plan for review and comment. Ideally, the stakeholder and open house meetings would be held at the Community House in Lions Park to provide convenient access for all interested parties. Up to three follow-up focus group meetings would be conducted with active stakeholders following each public meeting to resolve any critical issues. Project progress reports and updates, along with project meeting information, would be provided through the City and MPO website.

We will also plan for and attend one meeting with the Planning Commission to present the draft plan. That meeting could be advertised to the public so it also represents a opportunity for public review and comment on the draft plan, as well.

We will also provide technical information to MPO staff so they can meet with the MPO Technical, Policy and Citizen's Advisory Committees, the Cheyenne Frontier Days Committee meeting, and the City Council to discuss the proposed corridor plan, but we will not attend any of those meetings.

Tasks

10. Stakeholder and Public Meeting to present project
11. Stakeholder and Public Meeting to present preliminary plan
12. Focus Group Meetings (up to three)
13. Planning Commission Meeting
14. Project Meetings with MPO staff

PlanCheyenne Shape

Draft and Final Plan and Report

After the preferred alternative has been identified and evaluated, we will prepare a draft report that documents the study process, key decisions, public process, analyses, impacts and infrastructure recommendations that form the corridor plan. The plan will include a summary of existing traffic conditions and future conditions with the improvements, as well as plan sheets showing both the near-term and long-term improvements for the corridor and the Carey Avenue intersection. All technical data will be included in appropriate appendices for that document. Comments from MPO staff and the TAC will be incorporated into a final version of the document.

Tasks

1. Prepare a draft report summarizing the project process, analyses results, impacts and recommendation for the corridor, including the design plan sheets and preliminary opinions of probable costs for short term and long term improvements, from Task 7, below.
2. Prepare a final report that incorporates MPO and TAC comments on the draft plan.

PlanCheyenne Build

Funding and Preliminary Opinions of Probable Cost

The corridor plan document is intended to serve as a guide for development of the corridor vision, and as such it will also include information on probable costs for various corridor improvements elements, as well as potential options for phasing in the various improvements to achieve the entire corridor vision. To do so, 10 percent design drawings will be developed for

8th Avenue Corridor Plan Scope of Work

the corridor preferred alternative and 35 percent design drawings will be developed for the Carey Avenue intersection preferred alternative. This level of design will provide sufficient information on which to develop preliminary opinions of probable cost for both elements of the project. These costs will be developed for both the short-term, lower cost improvements and the higher-cost long-term solutions. BHA Design will develop landscaping and streetscape elements for the long-term solutions that go beyond basic city standards and provide preliminary opinions of probable cost for those items as well. We will also work with the MPO to identify various funding options for implementing the improvements.

FHU will not collect any survey data as a part of the design effort, and will rely on the MPO to provide all aerial photography, topography, right of way and land use data, utility information and flood area data.

Tasks

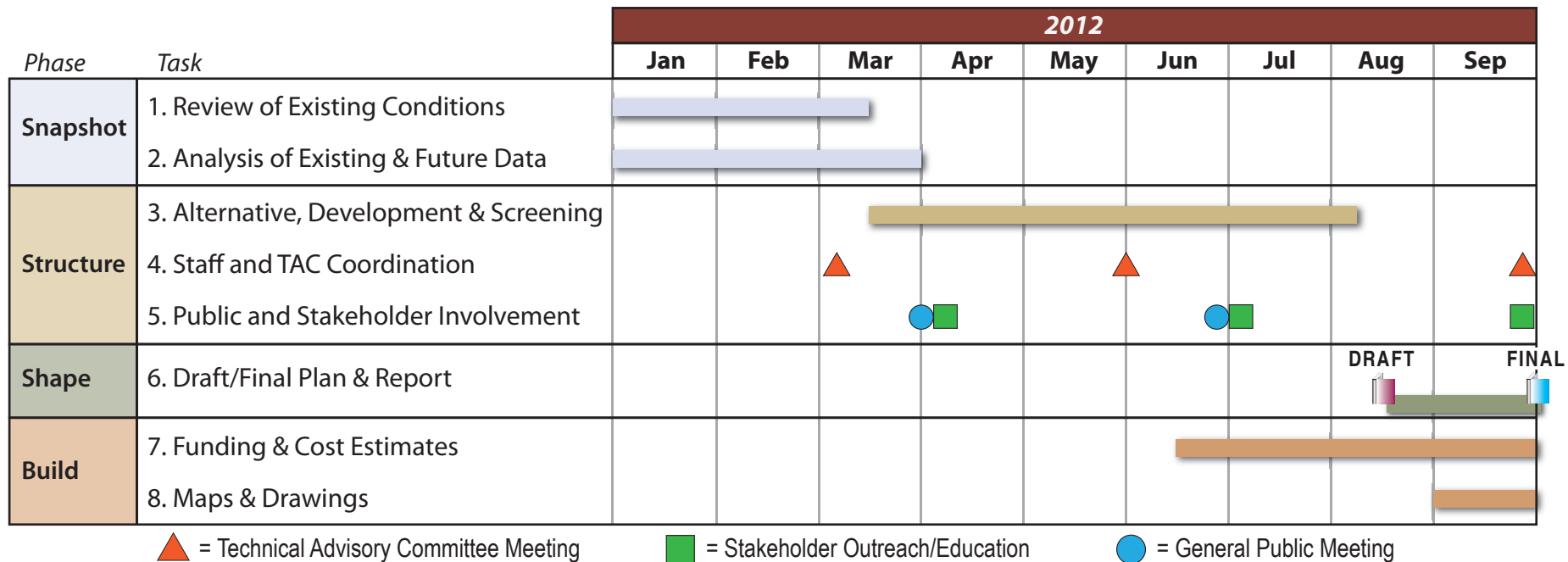
1. Prepare 10 percent design-level draft plan sheets showing the preferred alignment alternative for the 8th Avenue corridor.
2. Prepare final plan sheets for the corridor that incorporates MPO, TAC, key stakeholder, and public input.
3. Prepare 35 percent design level draft plan sheets showing the preferred alignment for the Carey/8th Avenue intersection.
4. Prepare final plan sheets for the intersection that incorporates MPO, TAC, key stakeholder, and public input.
5. Develop preliminary opinions of probable cost for short term corridor improvements.
6. Develop preliminary opinions of probable cost for long term corridor solutions.
7. Identify funding options.

Maps and Drawings

All of the recommendations and improvements will be provided to the MPO in a format capable of being imported into the ARC/Info GIS system. FHU regularly produces drawings in that format and has three full-time GIS staff members that can provide assistance to the MPO as necessary with that import.

Tasks

8. Provide final plans for the corridor and the intersection to the MPO in an appropriate ARC/Info GIS format.



8th Avenue Corridor Plan Budget

	FHU							BHA		
	Planning/Traffic				Design	GIS	Graphics	Landscape Architecture		
Element/Task	Principal DeVries \$160.00	Sr. Engr. Ream \$145.00	Engr IV Young \$105.00	Engr II Germeroth \$90.00	Engr III Christopher \$105.00	Env. Sci. II Hidalgo \$90.00	Sr. Designer Campbell \$110.00	Principal Milewski \$135.00	Land. Arch. McBride \$78.00	Total
PlanCheyenne Snapshot										
Task 1		2		4				2	4	12
Review Existing Documents	\$0	\$290	\$0	\$360	\$0	\$0	\$0	\$270	\$312	\$1,232
Task 2						2			2	4
Obtain GIS	\$0	\$0	\$0	\$0	\$0	\$180	\$0	\$0	\$156	\$336
Task 3				4						4
Develop Synchro and SimTraffic Models	\$0	\$0	\$0	\$360	\$0	\$0	\$0	\$0	\$0	\$360
Task 4		2		4						6
Existing and Future Traffic Volume Review	\$0	\$290	\$0	\$360	\$0	\$0	\$0	\$0	\$0	\$650
Task 5				4						4
Traffic Analysis	\$0	\$0	\$0	\$360	\$0	\$0	\$0	\$0	\$0	\$360
Task 6				4						4
Crash Analysis	\$0	\$0	\$0	\$360	\$0	\$0	\$0	\$0	\$0	\$360
Task 7			4							4
Pedestrian and Bike System Analysis	\$0	\$0	\$420	\$0	\$0	\$0	\$0	\$0	\$0	\$420
Task 8			2							2
Transit System Analysis	\$0	\$0	\$210	\$0	\$0	\$0	\$0	\$0	\$0	\$210
Task 9					2	4			6	12
Land Use, ROW and Utility Analysis	\$0	\$0	\$0	\$0	\$210	\$360	\$0	\$0	\$468	\$1,038
Task 10		6								6
Site Observations During Frontier Days	\$0	\$870	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$870
Subtotal, PlanCheyenne Snapshot	0	10	6	20	2	6	0	2	12	58
	\$0	\$1,450	\$630	\$1,800	\$210	\$540	\$0	\$270	\$936	\$5,836
PlanCheyenne Structure										
Task 1	2	2	2		8			2	8	24
8th Avenue Alignment Options	\$320	\$290	\$210	\$0	\$840	\$0	\$0	\$270	\$624	\$2,554
Task 2			4				4			8
Roadway Cross Sections	\$0	\$0	\$420	\$0	\$0	\$0	\$440	\$0	\$0	\$860
Task 3	2	2	2	8				2	4	20
Carey Intersection Design Options	\$320	\$290	\$210	\$720	\$0	\$0	\$0	\$270	\$312	\$2,122
Task 4					16			4	12	32
Carey Intersection Prelim. Design Plans	\$0	\$0	\$0	\$0	\$1,680	\$0	\$0	\$540	\$936	\$3,156
Task 5		2		8				4	6	20
Roadway and Intersection Evaluation	\$0	\$290	\$0	\$720	\$0	\$0	\$0	\$540	\$468	\$2,018
Task 6	2	4								6
Recommend Alternative	\$320	\$580	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$900
Task 7		8					4	3		15
TAC Input Meeting	\$0	\$1,160	\$0	\$0	\$0	\$0	\$440	\$405	\$0	\$2,005
Task 8		8					4	3	8	23
TAC Prelim Plan Review Meeting	\$0	\$1,160	\$0	\$0	\$0	\$0	\$440	\$405	\$624	\$2,629
Task 9		8					4	3	4	19
TAC Draft Plan Review Meeting	\$0	\$1,160	\$0	\$0	\$0	\$0	\$440	\$405	\$312	\$2,317
Task 10	8	12					12	4	2	38
Stakeholder/Public Meeting Present Project	\$1,280	\$1,740	\$0	\$0	\$0	\$0	\$1,320	\$540	\$156	\$5,036
Task 11		12					12	4	2	30
Stakeholder/Public Meeting Prelim. Plan	\$0	\$1,740	\$0	\$0	\$0	\$0	\$1,320	\$540	\$156	\$3,756
Task 12										0
Stakeholder/Public Meeting Draft Plan	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
Task 13		24								24
Three Focus Group Meetings	\$0	\$3,480	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$3,480
Task 14		12					8			20
Planning Commission Meeting	\$0	\$1,740	\$0	\$0	\$0	\$0	\$880	\$0	\$0	\$2,620
Task 15		2					2			4
MPO Advisory Committee Meeting	\$0	\$290	\$0	\$0	\$0	\$0	\$220	\$0	\$0	\$510
Task 16		2					2			4
CFD Committee Meeting	\$0	\$290	\$0	\$0	\$0	\$0	\$220	\$0	\$0	\$510
Task 17										0
City Council Meeting	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
Task 18	8	16								24
Project Meetings	\$1,280	\$2,320	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$3,600
Subtotal, PlanCheyenne Structure	22	114	8	16	24	0	52	29	46	311
	\$3,520	\$16,530	\$840	\$1,440	\$2,520	\$0	\$5,720	\$3,915	\$3,588	\$38,073
PlanCheyenne Shape										
Task 1	2	20					4	3	4	33
Draft Report	\$320	\$2,900	\$0	\$0	\$0	\$0	\$440	\$405	\$312	\$4,377
Task 2		8					2			10
Final Report	\$0	\$1,160	\$0	\$0	\$0	\$0	\$220	\$0	\$0	\$1,380
Subtotal, PlanCheyenne Shape	2	28	0	0	0	0	6	3	4	43
	\$320	\$4,060	\$0	\$0	\$0	\$0	\$660	\$405	\$312	\$5,757
PlanCheyenne Build										
Task 1		2			12			4	8	26
8th Avenue Preferred Alt. Draft Plan Sheets	\$0	\$290	\$0	\$0	\$1,260	\$0	\$0	\$540	\$624	\$2,714
Task 2		2			4					6
8th Avenue Final Plan Sheets	\$0	\$290	\$0	\$0	\$420	\$0	\$0	\$0	\$0	\$710
Task 3		2		4	24			2	8	40
Carey Intersection Pref. Alt. Draft Plan Sheets	\$0	\$290	\$0	\$360	\$2,520	\$0	\$0	\$270	\$624	\$4,064
Task 4		2		2	4					8
Carey Intersection Final Plan Sheets	\$0	\$290	\$0	\$180	\$420	\$0	\$0	\$0	\$0	\$890
Task 5					4			4	3	11
Short Term Imps. Probable Costs	\$0	\$0	\$0	\$0	\$420	\$0	\$0	\$540	\$234	\$1,194
Task 6					4			4	3	11
Long Term Imps. Probable Costs	\$0	\$0	\$0	\$0	\$420	\$0	\$0	\$540	\$234	\$1,194
Task 7		4								4
Funding Options	\$0	\$580	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$580
Task 8						2			2	4
Final Plans in GIS Format	\$0	\$0	\$0	\$0	\$0	\$180	\$0	\$0	\$156	\$336
Other	4	8								12
Overall Project Management	\$640	\$1,160	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$1,800
Subtotal, PlanCheyenne Build	4	20	0	6	52	2	0	14	24	122
	\$640	\$2,900	\$0	\$540	\$5,460	\$180	\$0	\$1,890	\$1,872	\$13,482
Total Hours	28	172	14	42	78	8	58	48	86	534
Total Costs	\$4,480	\$24,940	\$1,470	\$3,780	\$8,190	\$720	\$6,380	\$6,480	\$6,708	\$63,148

Category	Direct Costs
Mileage	\$1,500
Public Meeting Materials	\$450
Reproduction	\$100
BHA Direct Costs	\$1,350
Subtotal	\$3,400
Total	Total
	\$66,548